



SPONSOR: Sen. Walsh & Rep. K. Williams

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 192

AN ACT TO AMEND TITLE 26 OF THE DELAWARE CODE RELATING TO PUBLIC UTILITIES.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Subchapter I, Chapter 1, Title 26 of the Delaware Code by making deletions as shown by strike
2 through and insertions as shown by underline as follows:

3 § 102. Definitions.

4 As used in this title, unless the context otherwise requires:

5 () “Call center” means a facility or other operation whereby a public utility receives incoming telephone calls,
6 emails, or other electronic communication for the purpose of providing customer assistance or other service.

7 () “Disaster” means as defined in Chapter 31 of Title 20.

8 Section 2. Amend Subchapter II, Chapter 1, Title 26 of the Delaware Code by making deletions as shown by
9 strike through and insertions as shown by underline as follows:

10 § 226. Call Centers

11 (a) Not fewer than 120 days before relocating a call center outside of the service territory of the public utility or
12 contracting call center work outside of the service territory of the public utility, a public utility must, in the manner and
13 form determined by the Commission, do all of the following:

14 (1) Notify the Commission of the public utility’s intent to relocate the call center or contracting call
15 center work outside of the service territory of the public utility.

16 (2) Notify all current and prospective employees of the call center of the public utility’s intent to relocate
17 the call center or contracting call center work outside of the service territory of the public utility.

18 (3) Notify the leadership of any of labor unions in which a current or prospective employee is a member
19 of the public utility’s intent to relocate the call center or contracting call center work outside of the service territory
20 of the public utility.

21 (b) A public utility is exempt from the notification requirements described in this section if the public utility
22 contracts call center work outside of the service territory of the public utility due to a disaster.

SYNOPSIS

This Act imposes certain requirements upon a public utility if it intends to relocate a call center outside the service territory of the public utility or contract call center work outside of the service territory of the public utility. The requirements include providing notice to the Public Service Commission, current and prospective employees at the call center, and the union leadership of any current or prospective employees at the call center.

Author: Senator Walsh